NOTICE

OF

THE FIFTH MEETING

OF

THE COMMITTEE OF CREDITORS OF

RAGHULEELA BUILDERS PRIVATE LIMITED
(UNDERGOING CORPORATE INSOLVENCY RESOLUTION PROCESS)

DAY, DATE & TIME:

MONDAY, 25TH JANUARY 2022 AT 12:30 P.M.

VENUE:

1111/12, ELEVENTH FLOOR, C-WING, ONE BKC, BANDRA EAST, MUMBAI - 400051

THROUGH VIDEO CONFERENCING

NOTICE FOR THE FOURTH MEETING OF COMMITTEE OF CREDITORS

NOTICE is hereby given that in accordance with the provisions of Regulations 17, 19, 20 & 21 of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016, the fifth meeting of the Committee of Creditors of Raghuleela Builders Private Limited (RBPL) (Undergoing Corporate Insolvency Resolution Process) will be held on Tuesday, 25th January, 2022 at 12:30 P.M. at 1111/12, 11th Floor, C-wing, One BKC, Bandra East, Mumbai - 400051 through video conferencing to transact the business as specified in the enclosed Agenda.

In accordance with the provisions of Regulation 21 and 23 of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016, the members / participants of Committee of Creditors ("CoC") may attend/ participate and vote in the meeting either in person or through an authorized representative provided that such participant shall inform the undersigned, in advance, of the identity of the authorized representative, who will attend and vote on behalf of the participant in the meeting. Also, the participants shall be able to participate through video conferencing or other audio / visual means. In this regard, the participant is requested to intimate the undersigned at least 24 (Twenty-Four) hours in advance, i.e. by 24th January, 2022 till 12.30 P.M.

In terms of the Section 21(2) of the Insolvency and Bankruptcy Code, 2016, a related party to whom a corporate debtor owes a financial debt shall not have any right of representation, participation and voting in the meeting of Committee of Creditors. However, the said provision shall not apply to a financial creditor, regulated by a financial sector regulator, if it is a related party of the corporate debtor solely on account of conversion or substitution of debt into equity shares or instruments convertible into equity shares, prior to the Insolvency Commencement Date (i.e. 4th October, 2021 in this case).

Sd/-
VANDANA GARG
Resolution Professional
In the matter of Raghuleela Builders Private Limited
Regn No: IBBI/IPA-001/IP-P00025/2016-17/10058
Add: Unit 307, 3rd Floor, Exgellencia Lodha Supremus 2, Wagle Estate, Panchpakhadi, Thane, Maharashtra – 400604.
Email Id: cirp.raghuleela@gmail.com; vskgarg0899@gmail.com;
Mob: 8828009848, 7021587702

Date: 22.01.2022
Place: Mumbai

Enclosed:
(1) List of persons to whom the notice of the CoC meeting is being sent;
(2) Agenda, Notes to Agenda, Explanatory Statements and the Resolutions proposed to be passed.

NOTICE ALONG WITH AGENDA BEING SENT TO:

A. Financial Creditors – Members of Committee of Creditors.

S.No.	Name	E-mail
1.	Bank of Baroda	rm2.sammum@bankofbaroda.com sammumbob@gmail.com
2.	Yes Bank	nishit.hathi@yesbank.in hitesh.darji@yesbank.in rahul.rana3@yesbank.in
3.	Moon Star Securities Trading & Finance Co. Ltd	Moonstarsecurities@gmail.com
4.	One BKC Realtors Private Limited	sarat.kurup@nucleusofficeparks.com divakar.bhatia@nucleusofficeparks.com
5.	Gini Traders	dvh@ginitex.com accounts@ginitex.com
6.	Rovo Marketing Private Limited	rajan@oalindia.com
7.	Indiabulls Commercial Credit Limited	devbrat.mitra@indiabulls.com
8.	Sunnyvale Capital Limited	accounts@autofin.in
9.	Bhabani Realty Private Limited	Bhabanirealty2014@gmail.com
10.	MNR Projects Private Limited	Accounts.amagazine@yahoo.com

B. Members of Board of Directors of Corporate Debtor (powers suspended)

S. No.	Name of Directors	Email ID
1.	Mr. Sanjay Chhabria	sanjay@radiusdevelopers.com
2.	Mrs. Ritu Sanjay Chhabria	sanjay@radiusdevelopers.com

C. Operational Creditors: No Operational Creditors is having aggregate debt of 10% or more of the total debt of the Corporate Debtor.

AGENDA FOR THE MEETING

Agenda for the Fifth Meeting of the Committee of Creditors **("CoC")** of Raghuleela Builders Private Limited ("RBPL/ Corporate Debtor") to be held on Tuesday, 25th January, 2022 at 12:30 PM at 1111/12, 11th Floor, C-wing, One BKC, Bandra East, Mumbai - 400051 through video conferencing is as follows:

Item No.	Particulars
	A. List of matters to be discussed/noted
1.	The Resolution Professional **("RP")** to take the chair;
2.	To ascertain the quorum of the meeting in accordance with the provisions of Regulations 22 of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016;
3.	To take note of the minutes and results of e-voting of the 4th CoC meeting held on 17th January 2021.
4.	To discuss the security structure of CoC Members of Corporate Debtor.
	B. Any other matter with the permission of the chair

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Email Id: cirp.raghuleela@gmail.com; vskgarg0899@gmail.com;
Mob: 8828009848, 7021587702
Date: 22.01.2021
Place: Mumbai

NOTES TO AGENDA AND GENERAL GUIDELINES

1. In terms of Regulation 16A(9) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016, the authorised representative shall circulate the agenda to creditors in a class, and may seek their preliminary views on any item in the agenda to enable him to effectively participate in the meeting of the committee and that the creditors shall have a time window of at least twelve hours to submit their preliminary views, and the said window opens at least twenty-four hours after the authorised representative seeks preliminary views and such preliminary views shall not be considered as voting instructions by the creditors.

2. In terms of Section 25A(2) of the Insolvency and Bankruptcy Code, 2016, it shall be the duty of the authorized representative to circulate the agenda and minutes of the meeting of the committee of creditors to the financial creditors he represents;

3. As per Regulation 13(2) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations 2016, the list of creditors will be available for inspection at the venue of the Meeting;

4. In terms of Regulation 21(1) and 23(1) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016, a participant can attend the Meeting through video conferencing or other audio and visual means. Thus, participants intending to attend the meeting though such means, he/she shall write to the signatory of the notice at least Twenty Four hours before the time fixed for the Meeting at the email id mentioned herein along with their location. It is to be noted that the participants attending the Meeting through such means would also be considered as part of quorum;

5. As per Regulation 21(2) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016, a participant may attend the Meeting by himself or through an authorized representative. A participant attending through an authorized representative shall inform the signatory of the notice, at least Twenty Four hours in advance, the identity of the authorized representative who will attend and vote at the Meeting on its behalf. Also, the authorized representative is requested to carry an Identity Proof for his/ her identification;

6. As per Section 21 of the Insolvency and Bankruptcy Code, 2016, a financial creditor or authorized representative of such financial creditor, if it is a related party of the corporate debtor, shall not have any right of representation, participation or voting in the Meeting, subject to exceptions mentioned thereunder;

7. As per Section 21(8) of the Insolvency and Bankruptcy Code, 2016, all decisions of the CoC (except those u/s 12, 22, 27, 28, 30 and 33) shall be taken by a vote of not less than Fifty One percent of the Financial Creditors. Whereas, all decision of the CoC (those under the exception) shall be taken by a vote of not less than Sixty Six percent of the Financial Creditors;

8. As per Section 25(3A) of the Insolvency and Bankruptcy Code, 2016, the authorized representative shall cast his vote on behalf of all the financial creditors he represents in accordance with the decision taken by a vote of more than fifty per cent of the voting share of the financial creditors he represents, who have cast their vote;

9. As per Section 24(4) of the Insolvency and Bankruptcy Code, 2016, the directors of the Corporate Debtor attending the Meeting shall not have any right to vote at the Meeting and absence of any such director shall not invalidate the proceedings of the meeting;

10. As per Regulation 25(6) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations 2016, the authorised representative shall circulate the minutes of the meeting to creditors in a class and announce the voting window at least twenty-four hours before the window opens for voting instructions and keep the voting window open for at least twelve hours;

11. As per Regulation 26(1A) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations 2016, the authorized representative shall exercise the votes either by electronic means or through electronic voting system as per the voting instructions received by him from the creditors in the class;

12. As per provisions of Regulation 25(4) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016, at the conclusion of voting at the meeting, the decision taken on each of the items along with the names of the Members of the CoC who voted for or against the decision, or abstained from voting will be announced;

INSTRUCTIONS FOR E-VOTING ARE AS UNDER:-

(i) The Resolution Professional has made necessary arrangements with Right2Vote Infotech Private Limited to facilitate the e-voting. In connection thereto, the following schedule of timing is fixed in accordance with the provisions contained in the Insolvency and Bankruptcy Code, 2016 andRegulations thereto.

(ii) The voting period shall begin after the minutes of the meeting have been circulated by electronic means to all the members of committee and remains open for at-least 24 hours thereafter ("Voting Period"). During this period, the members of the CoC are being provided with a platform to cast their vote electronically.

(iii) As specified in Regulation 26 (3) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations 2016, at the end of the voting period, the e-voting portal shall forthwith be blocked by the service provider (LIPL).

(iv) As specified in Regulation 26 (4) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations 2016, at the conclusion of a vote held under this Regulations, the Resolution Professional shall announce and make a written record of the summary of the decision taken on a relevant agenda item along with the names of the members of the committee who voted for or against the decision or abstained from voting.

(v) As specified in Regulation 26 (5) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations 2016, the Resolution Professional shall circulate a copy of the record made under sub-regulation (4) to all participants by electronic means within 24 hours of the conclusion of the voting.

(vi) Subject to activation of E-voting portal on request of CoC

- **Circulation of Minutes of the meeting by the RP :** within 48 hours of conclusion of the meeting.
- **Voting to start for the Financial Creditors in any class**: 24 hours after circulation of

Minutes by the AR to the members of Financial Creditor in a class (Homebuyers).

- **Voting to close for the Financial Creditors in any class :** 72 hours after commencement of voting (minimum prescribed time is 12 hours).
- **Voting to close for other Financial Creditors (including AR) :** 24 hours after commencement of the voting

(vii) E-Voting Procedure:

1. Users will be sent e-voting invite emails with the voting website link and the duration of the voting by the voting agency, EVotes.
2. Once voting is opened, they can click on the link given in the email of above step 1 and visit the evoting website. On the website they'll be shown an input box where they'll have to enter their email address.
3. Users of Gmail, Outlook, Hotmail and Yahoo can authenticate themselves automatically by clicking on the button provided. Also all users will have the option of generating OTP which will be sent to their email.
4. Once authentication is successful, they'll then see the agendas and can votes, YES, NO or ABSTAIN as per their choice.
5. A receipt will be shown to them after their vote is complete. They can either print it or send it to their email. This receipt can also be re-generated anytime.

A. LIST OF MATTERS TO BE DISCUSSED/NOTED

ITEM NO. A1

THE RESOLUTION PROFESSIONAL ("RP") TO TAKE THE CHAIR

As per Regulation 24(1) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016, the Resolution Professional shall act as the Chairman of the meeting of the CoC. Accordingly, the Resolution Professional to take the chair of third CoC meeting of Corporate Debtor.

ITEM NO. A2

TO ASCERTAIN THE QUORUM OF THE MEETING IN ACCORDANCE WITH THE PROVISIONS OF REGULATIONS 22 OF THE INSOLVENCY AND BANKRUPTCY BOARD OF INDIA (INSOLVENCY RESOLUTION PROCESS FOR CORPORATE PERSONS) REGULATIONS, 2016

As per Regulation 22(1) of the Insolvency and Bankruptcy Board of India (Insolvency Resolution Process for Corporate Persons) Regulations, 2016, the quorum for the meeting of members of the committee shall be at least 33% of the voting rights, present either in person, or by video conferencing or other audio/visual means. Nevertheless, the committee may modify the percentage of voting rights required for quorum in respect of any future meetings of the committee.

ITEM NO. A3

TO TAKE NOTE OF THE MINUTES AND RESULTS OF E-VOTING OF 4th COC MEETING.

The minutes of the 4th CoC meeting were circulated on 18th January 2022 to all the members of the CoC. The members of the CoC are requested to take note of the minutes of the 4th meeting of

CoC held on 17th December 2022. The e-voting results of 4th CoC meeting were circulated on 18th January 2022 to all the members of the CoC. The members of the CoC are requested to take note of the e-voting results of the 4th CoC meeting held on 17th January 2022.

ITEM NO. A4

TO DISCUSS THE SECURITY STRUCTURE OF COC MEMBERS OF CORPORATE DEBTOR.

The Resolution Professional has prepared a summary of security structure and shall present the same for discussion in the meeting of the CoC.

B. ANY OTHER MATTER WITH THE PERMISSION OF THE CHAIR

The member of committee is entitled to raise any other matter for discussion and due deliberation with the permission of the Chairman. In case, there is no such matter from member of the CoC, the meeting will be concluded with a vote of thanks by RP.

Sd/-
VANDANA GARG
Resolution Professional
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